

STATE OF NEW YORK

964--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. LUNSFORD, GLICK, DAVILA -- read once and referred to the Committee on Judiciary -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the uniform justice court act, the public officers law and the uniform city court act, in relation to allowing for justices to reside in any town, village or city within the same assembly district as the court such justice serves and establishing minimum educational requirements for certain town and village justices

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The uniform justice court act is amended by adding a new section 106-c to read as follows:

§ 106-c. Residency of justices.

Notwithstanding any other provision of law to the contrary, any justice serving a term of office in a town, village or city court may reside in any town, village or city contained in whole or in part within the same assembly district as the court such justice serves.

§ 2. The uniform justice court act is amended by adding a new section 105-a to read as follows:

§ 105-a. Minimum educational requirements of certain town and village justices.

Notwithstanding any other provision of law to the contrary, any town or village, may by a majority vote of the governing body of such town or village, require that any person who serves as a town or village justice be admitted to practice law in the state. Any change in the requirements for eligibility to serve as town or village justice shall take effect upon commencement of the next judicial term of office following the election after enactment of the local law.

§ 3. Section 3 of the public officers law is amended by adding a new subdivision 10-a to read as follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 10-a. Neither the provisions of this section nor of any general,
2 special or local law, charter, code, ordinance, resolution, rule or
3 regulation, requiring a person to be a resident of the political subdi-
4 vision or municipal corporation of the state for which they shall be
5 chosen or within which their official functions are required to be exer-
6 cised, shall apply to the appointment of justices of a town or village
7 court who resides in an assembly district contiguous to such munici-
8 pality.

9 § 4. Section 2104 of the uniform city court act is amended by adding a
10 new subdivision (g) to read as follows:

11 (g) Neither the provisions of this section nor of any general, special
12 or local law, charter, code, ordinance, resolution, rule or regulation,
13 requiring a person to be a resident of the political subdivision or
14 municipal corporation of the state for which they shall be chosen or
15 within which their official functions are required to be exercised,
16 shall apply to the appointment of justices of a city court outside of
17 the city of New York who resides in an assembly district contiguous to
18 such municipality.

19 § 5. This act shall take effect on the first of January next succeed-
20 ing the date on which it shall have become a law.